

HCJDA 38
JUDGMENT SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.79717 of 2021

Abid Farooq vs Federation of Pakistan, etc.

JUDGMENT

Date of hearing:	<u>12.01.2022</u>
Petitioner by:	Mr.Afzaal Ahmad Butt, Advocate.
State by:	Mr.Tariq Shafique Bhandara, Deputy Attorney General on behalf of respondents No.1 and 2. Mr.Safdar Hayat Bosaal, Assistant Advocate General on behalf of respondents No.3 to 11 alongwith Aftab S.I. and Qasim S.I. with record.

Farooq Haider, J:- Through this petition in terms of Article 199 of the Constitution of Islamic Republic of Pakistan, 1973, the petitioner has prayed as under:-

“In view of the submissions made above, it is most respectfully prayed that this writ petition may kindly be admitted for regular hearing; notices may kindly be issued to the respondents; impugned CIRCULAR dated 13.11.2020 issued by respondent No.2 with the subject of BLACKLISTING OF THE INDIVIDUAL FOR FUTURE PASSPORT FACILITIES, to the extent of the petitioner only, be declared void ab initio being unlawful and in excess of lawful jurisdiction and ultra vires the Constitution.

It is further prayed that a protective bail for a period of only four working days be also granted to the petitioner in case FIR No.263/2007 and No.328/2007 of Police Station Ahmad Nagar Gujranwala as well as in case FIR No.953/2012 of Police Station City-Hafizabad for the purpose of his appearing before the concerned courts of competent jurisdiction in District Gujranwala and Hafizabad after his arrival/entry in Pakistan.

Any other relief, which this Honorable Court may deem fit and proper under the circumstances of the case, may also be ordered.”

2. Learned counsel for the petitioner, at the very outset, submits that he only seeks grant of protective ad-interim pre-arrest bail to the petitioner in case arising out of F.I.R. No.263/2007 dated: 08.08.2007 registered under Sections: 324, 353,

34 PPC at Police Station: Ahmadnagar, District: Gujranwala, F.I.R. No.328/2007 dated: 07.10.2007 registered under Section: 392 PPC at Police Station: Ahmadnagar, District: Gujranwala and F.I.R. No.953/2012 dated: 10.12.2012 registered under Sections: 302, 148, 149 PPC at Police Station: City Hafizabad and does not press this petition to the extent of other prayer made in the petition.

3. Learned Deputy Attorney General for Pakistan has submitted copy of report on behalf of respondents No.1 and 2, which has been placed on record of instant petition. Similarly, learned Assistant Advocate General has submitted written report prepared by District Police Officer, Hafizabad/respondent No.5, which has been placed on record of instant petition.

4. Learned counsel for the petitioner submits that petitioner is abroad who has been declared proclaimed offender in aforementioned cases and requests for grant of protective ad-interim pre-arrest bail to the petitioner in aforementioned cases in order to enable him to appear before the Court (concerned).

5. Learned Deputy Attorney General for Pakistan as well as learned Assistant Advocate General Punjab jointly submit that petitioner has been declared as proclaimed offender and even today he is not present before the Court, therefore, instant petition is not maintainable and liable to be dismissed.

6. **Arguments heard. Record perused.**

7. Admittedly, petitioner is neither present in the Court nor in this country rather he is statedly abroad i.e. in Spain. **Pre-arrest bail** is, as a matter of fact, an order to restrain police/investigating agency from arresting the accused in a case. It may be ad-interim pre-arrest bail, confirmed pre-arrest bail or protective/transitory ad-interim pre-arrest bail in a case. When an accused files petition and appears first time in a case for pre-arrest bail before the Court having jurisdiction to grant pre-arrest bail and said Court while summoning the record of the case restrains police/investigating agency from arresting the accused till date of production of the record, it is termed as **“ad-interim pre-arrest bail”** then after receipt and examination of record, if said Court restrains police/investigating agency from arresting the accused during trial and till decision of that case, it is called as **“confirmed pre-arrest bail”**; if accused appears before the Court for getting order qua restraining police/investigating agency from arresting him in a case till he approaches the Court (concerned) having jurisdiction to deal with his petition for pre-arrest bail and Court restrains police from arresting the accused in said case for a certain period and till certain date in order to enable said accused to

approach the Court (concerned) for pre-arrest bail then it is called as **“protective or transitory ad-interim pre-arrest bail”**. However, all the three aforementioned categories are different forms of the pre-arrest bail.

8. Concept of pre-arrest bail after going through the evolutionary process has now attained a definite shape/nomenclature and Section: 498-A Cr.P.C. is now holding the field regarding basic requirements for maintainability of petition for pre-arrest bail. Section: 498-A Cr.P.C. is hereby reproduced:-

“498-A. No bail to be granted to a person not in custody, in Court or against whom no case is registered, etc. : Nothing in section 497, or Section 498 shall be deemed to require or authorize a Court to release on bail, or to direct to be admitted to bail, any person who is not in custody or is not present in Court or against whom no case stands registered for the time being and an order for the release of a person on bail, or direction that a person be admitted to bail shall be effective only in respect of the case that so stands registered against him and is specified in the order or direction.”

Perusal of Section: 498-A Cr.P.C. clearly reveals that presence of the accused before the Court for pre-arrest bail in the case is a must/mandatory and without his presence, pre-arrest bail cannot be granted; in this regard, case of **“Shazaib etc. versus The State etc.” (PLD 2021 SC 886)** can be authoritatively referred; relevant portions whereof are hereby reproduced: -

“4. After insertion of section 498-A of the Code of Criminal Procedure, 1898 (“Cr.P.C.”) if the accused, seeking pre-arrest bail, is not present before the Court, the Court is not authorized to grant bail to such an accused and therefore, the petition is liable to be dismissed in the light of the said statutory provision. For convenience, section 498-A, Cr.P.C. is reproduced hereunder:-

“498-A. No bail to be granted to a person not in custody, in Court or against whom no case is registered, etc. : Nothing in section 497, or Section 498 shall be deemed to require or authorize a Court to release on bail, or to direct to be admitted to bail, any person who is not in custody or is not present in Court or against whom no case stands registered for the time being and an order for the release of a person on bail, or a direction that a person be admitted to bail, shall be effective only in respect of the case that so stands registered against him and is specified in the order or direction.”

Section 498-A, Cr.P.C. creates a statutory fetter or a statutory precondition requiring the presence of the petitioner in person in Court, the Court is not authorized to

*grant him bail and the petition is to be dismissed for his
lack of presence in Court.....”*

By now it is well settled that a thing prescribed to be done by a statute in a particular manner should be done in that manner only and in no other way or it should not be done at all; in this regard, guidance has been sought from the case of **“Attaullah Khan versus Ali Azam Afridi and others”** (2021 SCMR 1979).

9. Nutshell of above discussion is that since petitioner/accused in the cases is not present before the Court, therefore, he cannot be granted protective ad-interim pre-arrest bail in the cases (mentioned above). Resultantly, instant petition being not maintainable is **dismissed**.

(Farooq Haider)
Judge

APPROVED FOR REPORTING.

(Farooq Haider)
Judge

Iftikhar